

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERRELL FULCHER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NYPD POLICE OFFICER
JUAN CARRERO, SHIELD # 938174, 24TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER, and
NYPD POLICE OFFICERS "JOHN DOES" 1-10, 24TH
PCT., INDIVIDUALLY AND AS A POLICE OFFICERS,
intended to be those NYPD Police Officers whose identities
are presently unknown who assaulted and injured Plaintiff
on November 22, 2013,

Defendants.

-----X Index No.: _____

Date Filed: _____

SUMMONS

Plaintiff designates
NEW YORK COUNTY as the
Place of Trial

The basis of venue is
Situs of Occurrence:
140 West 104th Street
New York, NY

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 18, 2015

Yours, etc.,

FEINER & LAVY, P.C.


STEPHANIE E. EMANUEL, ESQ.

Attorneys for Plaintiff

JERRELL FULCHER

325 Broadway, Suite 401

New York, New York 10007

T: (212) 571-9200

F: (212) 901-2101

Defendants' Addresses for Service

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

c/o 100 Church Street

New York, New York 10007

NYPD PO JUAN CARRERO, SHIELD # 938174

c/o NYPD 24TH PCT

151 West 100th Street

New York, NY 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERRELL FULCHER,

-----X Index No.: _____

Date Filed: _____

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NYPD POLICE OFFICER
JUAN CARRERO, SHIELD # 938174, 24TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER, and
NYPD POLICE OFFICERS "JOHN DOES" 1-10, 24TH
PCT., INDIVIDUALLY AND AS A POLICE OFFICERS,
intended to be those NYPD Police Officers whose identities
are presently unknown who assaulted and injured Plaintiff
on November 22, 2013,

Defendants.

-----X

Plaintiff JERRELL FULCHER, by his attorneys, FEINER & LAVY, P.C., for his
verified complaint against the Defendants alleges as follows:

THE PARTIES

1. That at all times hereinafter mentioned, Plaintiff JERRELL FULCHER was and still is
a resident of New York County, City and State of New York.
2. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK was
and still is a duly constituted municipal corporate entity existing under and by virtue of the
laws of the State of New York.
3. That at all times hereinafter mentioned, Defendant THE POLICE DEPARTMENT OF
THE CITY OF NEW YORK ("NYPD") was and still is a municipal entity existing under and by
virtue of the laws of the State of New York.
4. That, upon information and belief and at all times hereinafter mentioned, Defendant
NYPD POLICE OFFICER JUAN CARRERO, SHIELD # 938174, 24TH PCT. ("CARRERO"),

FACTUAL BACKGROUND

9. That at all times hereinafter mentioned, Defendants CITY OF NEW YORK and NYPD, operated, maintained and controlled, managed and staffed Defendant NYPD, including all of the Police Officers therein

10. That on or about November 22, 2013, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, individually and collectively, were acting within the scope of their employment as Defendant NYPD Police Officers, and under the direction of Defendant CITY OF NEW YORK as their agents, servants and/or employees.

11. That on or about November 22, 2013 at approximately 12:00 pm, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, acting within the scope of their employment as Defendant NYPD Police Officers, were present in the vicinity of Stairwell No. 8 in the apartment complex at 140 West 104th Street, New York, New York.

12. That on or about November 22, 2013 at approximately 12:00 pm, Plaintiff JERRELL FULCHER was climbing the steps of Stairwell No. 8 at 140 West 104th Street, New York, New York, when Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, under color of law in their collective capacities and authority as Defendants' Police Officers and without any provocation, justification or cause, maliciously and intentional brutally struck, attacked and assaulted Plaintiff JERRELL FULCHER, about the body with punches, kicks and jumping on his left foot causing severe, substantial and permanent physical injuries to Plaintiff.

13. After sustaining such injuries, Plaintiff was thereafter unlawfully detained, searched and wrongfully imprisoned and charged/prosecuted for a violation of PL 221.1001, criminal possession of marihuana in the fifth degree, and was issued a desk appearance ticket.

14. Plaintiff was thereafter taken to St. Lukes Roosevelt Hospital Center, 1111 Amsterdam Avenue, New York, NY where it was ascertained that, among other serious and

was and still is employed as Police Officer by Defendants CITY OF NEW YORK and NYPD, assigned to the 24th Precinct, 151 West 100th Street New York, NY 10025, and at all relevant times set forth below acted in the capacity of a police officer and employee of Defendant New York City.

5. That, upon information and belief and at all times hereinafter mentioned, Defendants NYPD POLICE OFFICERS "JOHN DOES" 1-10, 24TH PCT., were and still are employed as Police Officers by Defendants New York City and the NYPD, assigned to the 24th Precinct, 151 West 100th Street New York, NY 10025, and at all relevant times set forth below acted in their capacities as police officers and employees of Defendant CITY OF NEW YORK.

CONDITIONS PRECEDENT TO SUIT

6. That on February 20, 2014, within ninety (90) days after the claims herein sued upon arose, Plaintiff JERRELL FULCHER filed and served a Notice of Claim upon the Defendants, which set forth the name and post office address of Plaintiff, his attorneys, the nature of his claim, the time when, the place where, and the manner in which such claim arose, and the items of damage or injuries claimed to have been sustained by Plaintiff, so far as then practicable.

7. That a hearing pursuant to NY General Municipal Law §50-h was scheduled as to Plaintiff JERRELL FULCHER for September 11, 2014 by the Plaintiffs' request and a January 28, 2015 hearing was scheduled and was adjourned at the request of Defendants without a new hearing date being scheduled; more than thirty (30) days have elapsed from the presentation of the aforesaid Notice of Claim and the Defendants have failed and neglected to settle or adjust Plaintiff's claims.

8. That this action is commenced within one (1) year and ninety (90) days after the happening of the event upon which the respective claims are based and that all conditions precedent to the commencement of the within action have been fulfilled and/or complied with.

permanent injuries, he sustained a fractured left foot in the brutal assault and beating by Defendants.

15. Plaintiff's criminal prosecution has not yet been resolved.

16. Following his assault and arrest, Plaintiff has been subjected to repeated harassing and intimidating phone calls from individuals identifying themselves as members of the NYPD and the New York City Housing Authority Police Department.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault & Battery)

17. Plaintiff JERRELL FULCHER repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "16" herein.

18. That Plaintiff was, without any provocation, justification or cause, maliciously and brutally struck, assaulted and beaten about his body by Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, in unison, while acting under color of authority and in the performance of their duties as Defendants' NYPD Police Officers.

19. That said physical assault and beating of Plaintiff JERRELL FULCHER was excessive, unlawful and without privilege.

20. That by reason of said physical assault and beating and subsequent disciplinary punishment and deprivation of privileges, Plaintiff JERRELL FULCHER sustained severe, grave and permanent physical injuries, pain, suffering, disability and psychological injury and was caused to fear further contact/beatings and imminent harm.

21. That the above acts committed by Defendants, their agents, servants, and/or employees constituted an assault and/or battery of Plaintiff JERRELL FULCHER

22. That by reason thereof, Plaintiff JERRELL FULCHER has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
(Intentional Infliction Emotional Distress)

23. Plaintiff JERRELL FULCHER repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "22" herein.

24. That Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, authority as Defendants' NYPD Police Officers, by maliciously and brutally striking, assaulting and beating Plaintiff, without any provocation, justification or cause, about his body and severely injuring Plaintiff JERRELL FULCHER engaged in extreme and outrageous conduct intolerable in a civilized society, intending to inflict and did fact inflict and cause Plaintiff severe emotional distress.

25. That the above actions by Defendants, their agents, servants, and/or employees were so outrageous and extreme in character and degree, as to go beyond all possible bounds of decency, as to be regarded as atrocious, and utterly intolerable in civilized society.

26. That by reason of said physical assault and intentional infliction of emotional distress, Plaintiff JERRELL FULCHER sustained severe, grave and permanent physical injuries, pain, suffering, disability and psychological injury and was caused to fear further contact/beatings and imminent harm.

27. That by reason thereof, Plaintiff JERRELL FULCHER has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
(negligence; negligent training/supervision)

28. Plaintiff JERRELL FULCHER repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "27" herein.

29. That Defendants CITY OF NEW YORK and NYPD were careless and reckless in

hiring, training, assigning, testing retaining, supervising and promoting as and for its employees, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, in that said Defendant Police Officers lacked the experience, deportment, training, suitability and ability to be employed by Defendants CITY OF NEW YORK and NYPD in the capacity of Police Officers which they were performing on November 22, 2013.

30. That Defendants CITY OF NEW YORK and NYPD customarily failed to properly train and enforce Police Officer's guidelines, procedures and code of conduct and negligently failed to, and/or had a policy not to investigate, reprimand, discipline and/or punish Police Officers who failed to abide by and perform their employment duties in accordance with said Police Officer's guidelines, procedures and code of conduct.

31. That Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, while acting within the scope of their employment, were negligent in that they failed to use such care in the performance of their Police Officers' duties as a reasonably prudent and careful correctional officer would have used under similar circumstances; in that they, individually and collectively were negligent, careless and reckless in the manner in which they performed their policing duties in that they maliciously and brutally physically struck, assaulted and beat Plaintiff, a mere innocent bystander lawfully present, without any provocation, justification or cause, while acting under color of authority and in the performance of their duties as Defendants' NYPD Police Officers, by thereafter wrongfully charging Plaintiff with a criminal violation, by conspiring to harass and intimidate Plaintiff JERRELL FULCHER and in otherwise violating NYPD Police Officer's guidelines, procedures and code of conduct, and in that Defendants were otherwise careless, reckless and negligent.

32. That the aforesaid occurrence, to wit: assault and battery and intentional inflictional of emotional distress, and the resulting permanent physical and psychological injuries and pain to

were caused wholly and solely by reason of the negligence of Defendants without any negligence on the part of Plaintiff JERRELL FULCHER contributing thereto.

33. That by reason of the foregoing negligence of Defendants, Plaintiff JERRELL FULCHER sustained severe, grave and permanent physical injuries, pain, suffering, disability and psychological injury and was caused to fear further contact/beatings and imminent harm.

34. That by reason thereof, Plaintiff JERRELL FULCHER has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST
DEFENDANTS CITY OF NEW YORK and NYPD
(42 USC §1983 Violation)**

35. Plaintiff JERRELL FULCHER repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" herein.

36. In maliciously and intentional striking and assaulting Plaintiff JERRELL FULCHER, without provocation, justification or cause, and thereby inflicting substantial and permanent physical and psychological injuries to Plaintiff, by falsely, wrongfully and maliciously charging Plaintiff with a criminal violation, and thereafter by conspiring to harass and intimidate Plaintiff JERRELL FULCHER, and by reason thereof Plaintiff was wrongfully subjected to additional physical punishment and loss of privileges, the Defendants violated Plaintiff JERRELL FULCHER's constitutional rights under the 4th, 5th, 8th and 14th Amendments of the Constitution of the United State of America.

37. That Defendants CITY OF NEW YORK and NYPD, negligently trained, supervised, and monitored its personnel and failed to promulgate and put into effect appropriate rules regulations and procedures governing its Police Officers so as to prevent the willful disregard of Plaintiffs' constitutional rights thereby violating Plaintiffs' 4th, 5th, 8th and 14th amendment .

rights guaranteed by the Constitution of the United States and plaintiff's Civil Rights as set forth by Section 1980, et seq. of Chapter 42 of the United States Code.

38. That the willful disregard of Plaintiff JERRELL FULCHER' constitutional rights and the Defendants' violation of 42 USC §1983 as here before alleged was the result of the official Municipal Policy of Defendants CITY OF NEW YORK and NYPD.

39. The willful disregard of Plaintiffs' constitutional rights and the Defendants' violation of 42 USC §1983 as hereinbefore alleged occurred because of the customs followed by Defendants CITY OF NEW YORK and NYPD in such cases.

40. Defendants CITY OF NEW YORK and NYPD acted with deliberate indifference to Plaintiff's constitutional rights as hereinbefore set forth in that said Defendants failed to adequately train, supervise, and discipline their Police Officers in matters involving appropriate conduct towards and treatment of inmates and detainees remanded to their care and custody and specifically the prohibition against illegally assaulting and beating innocent bystanders, more particularly Plaintiff, and by systematically covering up evidence of such brutal physical assaults by falsely and wrongfully charging such bystanders, such as Plaintiff, with criminal violations and by failing to make appropriate and adequate inquiry into the manner in which arrestees and detainees, such as Plaintiff sustained severe and permanent physical injuries, while in Defendants' care and custody.

41. That by reason thereof, Plaintiff JERRELL FULCHER has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST
INDIVIDUAL DEFENDANT POLICE OFFICERS**
(42 USC §1983 Violation)

42. Plaintiff JERRELL FULCHER repeat, reiterate and reallege each and every

allegation contained in paragraphs "1" through "41" herein.

43. That at all times herein mentioned, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, were employed by Defendant CITY OF NEW YORK and NYPD and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

44. That at all time, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10,, were acting pursuant to orders and directives from Defendants CITY OF NEW YORK and NYPD.

45. That during all times hereinafter mentioned, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The CITY OF NEW YORK and the NYPD and that said individual defendants were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of Plaintiff JERRELL FULCHER, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

46. That the unlawful and illegal conduct of Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10, deprived Plaintiff JERRELL FULCHER of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;

The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
The right not to be subjected to cruel and unusual punishment.

47. That by reason of the aforesaid violations, to wit: the malicious and brutal assault and battery of Plaintiff, without provocation, justification or cause, intentional infliction of emotional distress, conspiring to cover up said assault and battery by falsely, wrongfully and maliciously charging Plaintiff with a criminal violation, and thereafter harassing and intimidating Plaintiff JERRELL FULCHER, and by reason thereof Plaintiff was wrongfully subjected to additional physical punishment and loss of privileges and physically threatening Plaintiff JERRELL FULCHER, Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10 Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto. The defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. 51983.

48. That as a direct proximate result of Defendants CARRERO and NYPD POLICE OFFICERS "JOHN DOES" 1-10 actions, Plaintiff JERRELL FULCHER sustained severe and permanent physical and psychological injuries.

49. That by reason thereof, Plaintiff JERRELL FULCHER has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
(Attorneys' Fees)

50. Plaintiff JERRELL FULCHER repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "49" herein.

51. Pursuant to Title 42 US Code Section 1983, Plaintiffs are entitled to recover

reasonable attorneys fees for the violation of said statute as alleged herein.

52. As result of the foregoing, Plaintiff JERRELL FULCHER is entitled to recover from the Defendants such amount as and for attorneys fees as to the court may seem just and reasonable.

WHEREFORE, Plaintiff JERRELL FULCHER demand judgment against Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NYPD POLICE OFFICER JUAN CARRERO, SHIELD # 938174, 24TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, and NYPD POLICE OFFICERS "JOHN DOES" 1-10, 24TH PCT., INDIVIDUALLY AND AS A POLICE OFFICERS, as follows:

(A) On the First, Second and Third Causes of Action, Judgment against all Defendants in an amount to be determined at trial but which exceeds the jurisdictional limits of all lower courts;

(B) On the Fourth Cause of Action, Judgment against Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT in an amount to be determined at trial but which exceeds the jurisdictional limits of all lower courts;

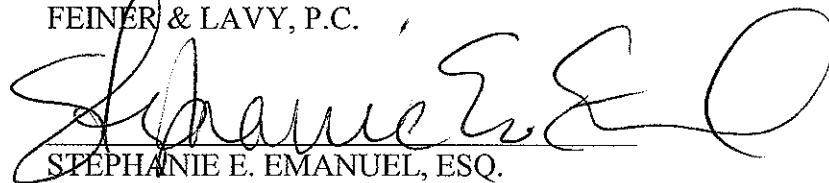
(C) On the Fifth Cause of Action, Judgment against Defendants NYPD POLICE OFFICER JUAN CARRERO, SHIELD # 938174, 24TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, and NYPD POLICE OFFICERS "JOHN DOES" 1-10 , in their official and individual capacities, in an amount to be determined at trial but which exceeds the jurisdictional limits of all lower courts;

(D) On the Sixth Cause of Action, Judgment against all Defendants in an amount to be determined at trial but which exceeds the jurisdictional limits of all lower courts; and

(E) Interest, costs and disbursements of this action.

Dated: New York, New York
February 18, 2015

Yours, etc.,
FEINER & LAVY, P.C.

A large, stylized handwritten signature in black ink, appearing to read 'Stephanie E. Emanuel', is written over the printed name.

STEPHANIE E. EMANUEL, ESQ.

Attorneys for Plaintiff

JERRELL FULCHER

325 Broadway, Suite 401

New York, New York 10007

T: (212) 571-9200

F: (212) 901-2101

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

JERRELL FULCHER, one of the Plaintiffs herein, being duly sworn, deposes and says:

I have read the foregoing Complaint and know the contents thereof, the same is true to my knowledge,
except as to those matters therein stated to be alleged upon information and belief and as to those matters
I believe them to be true.

Jerrell Fulcher
JERRELL FULCHER

Sworn to before me this 18th
day of February, 2015

Stephanie Emanuel
NOTARY PUBLIC



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JERRELL FULCHER,

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Date Filed: _____

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, NYPD POLICE OFFICER
JUAN CARRERO, SHIELD # 938174, 24TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER, and
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PCT., INDIVIDUALLY AND AS A POLICE OFFICERS,
intended to be those NYPD Police Officers whose identities
are presently unknown who assaulted and injured Plaintiff
on November 22, 2013,

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

FEINER & LAVY, P.C.
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